

MILPERSMAN 1050-090

LEAVE: DAY OF DEPARTURE/RETURN

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References	(a) DOD Instruction 1327.06 of June 2009 (b) DJMS Procedures Training Guide Part 1, Chapter 2
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1. **Policy.** Leave-granting authorities may authorize the commencement of leave at any time on a day of duty. The member must be physically present at the home station or port when departing and returning from leave. Special liberty must not be granted for the purpose of extending leave. Unit commanders have the authority to grant and combine leave and special liberty per reference (a) via a memorandum authorizing a special pass. If combining leave and special liberty, the member must be physically present at the home station or port when departing and returning from leave. If the member wishes to leave the home station or port during the special liberty period and not return prior to the beginning of the leave period, then the entire leave and liberty period will be charged as leave.

2. **Leave Accounting.** Reference (b), details specific leave accounting procedures.

3. **Determining Day of Duty or Day of Leave.** Use the rules in table below to determine whether a day of departure or return is to be counted as a day of duty or a day of leave:

WHEN ...	THEN ...
leave commences prior to the expiration of the member's normal working hours,	the day of departure is counted as a day of leave.
leave commences after the expiration of the member's normal working hours,	the day of departure from the duty station is a day of duty not charged as leave.
WHEN ...	THEN ...

no duties are scheduled for that day, e.g., regular day off,	leave may commence anytime during the day.
a return is made at or before the commencement of the member's normal working hours,	the day of return from leave will be counted as a day of duty.
a return is made after the commencement of the member's normal working hours,	the day of return from leave will be counted as a day of leave.
leave commences and terminates on non-duty days,	one of the days will be charged as leave.

4. **Examples.** The following examples are set forth in the table below to aid in determining the commencement of leave. In each instance, the member works Monday through Friday, 0800 to 1630. Immediate geographic area is defined by the local command.

Example #	WHEN ...	THEN ...	AND ...
1	a member wants to commence leave at 1630 on Thursday,	Friday is the first day of chargeable leave,	Thursday is a day of duty.
2	a member wants to commence leave at 1200 on Tuesday,	Tuesday will be charged as a day of leave.	
3	special liberty is granted at 1200 on Friday, and a member wants to take leave on Saturday,	Friday is the first day of chargeable leave if the member departs the immediate geographic area before 1630 on Friday.	
		Saturday is the first day of chargeable leave if the member departs the immediate geographic area after 1630 on Friday,	the member is allowed to combine special liberty and leave.

4	a member returns from leave taken outside the immediate geographic area during a period of special liberty,	The last day of chargeable leave is the day the member returns to the immediate geographic area,	the member is allowed to combine special liberty and leave.
Example #	WHEN ...	THEN ...	AND ...
5	member wants to commence leave at 0001 Sunday,	Monday is the first day of leave,	Sunday is counted as a day of duty.
	telephone check-out is authorized,	member must be in the immediate geographic area of his or her duty station.	
6	leave period also ends on a non-work day, i.e., weekend or holiday,	one of the days will be charged as a day of leave, regardless of time of departure or return.	